

In *Hughes*, the California Supreme Court affirmed the granting of summary judgment in the defendant's favor because the record contained no evidence showing the plaintiff was subjected to the requisite "extreme or outrageous conduct," where the plaintiff's alleged distress required no treatment and did not disrupt the plaintiff's daily life. (*Hughes, supra*, 46 Cal.4th at p. 1051.) In contrast, here Plaintiff alleges Defendants' conduct caused her to suffer from extreme anxiety such that she began and continues to receive psychotherapy treatments. The court finds Plaintiff's allegations are sufficient to allow the trier of fact to conclude Defendants' conduct was sufficiently extreme or outrageous to satisfy this element (although not necessary so). Therefore, the court overrules Defendants' demurrer to the tenth cause of action.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img **on** 7-8-26.
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: **Jane Doe v. Michael Prueitt**
Superior Court Case No. 24CECG05207

Hearing Date: July 9, 2026 (Dept. 502)

Motion: Defendants' Counsel's Motion to Withdraw as Counsel of Record for Defendants Lolo's Pub, Michael Dean Prueitt, and Laurie Denise Bedford

Tentative Ruling:

To deny defendants' counsel's motion to withdraw as counsel for defendants Lolo's Pub, Michael Dean Prueitt, and Laurie Denise Bedford, without prejudice.

Explanation:

Giulio A. Sanchez of Wanger Jones Helsley PC ("Counsel") makes this motion to withdraw as counsel for defendants Lolo's Pub, Michael Dean Prueitt, and Laurie Denise Bedford.

“A notice of motion and motion to be relieved as counsel under ... must be directed to the client and must be made on the Notice of Motion and Motion to Be Relieved as Counsel--Civil (form MC-051).” (Cal. Rules Ct., rule 3.1362, subd. (a).) “The motion to be relieved as counsel must be accompanied by a declaration on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel--Civil (form MC-052).” (Cal. Rules Ct., rule 3.1362, subd. (c).) “The proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel-Civil (form MC-053) and must be lodged with the court with the moving papers.” (Cal. Rules Ct., rule 3.1362, subd. (d).) Use of the Judicial Council forms became mandatory on January 1, 2007.

Moving counsel did not file and serve the required form MC-051, MC-052, and MC-053 in compliance with Rule 3.1362. Accordingly, the motion is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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